

SENATE No. 1168

The Commonwealth of Massachusetts

PRESENTED BY:

Joan B. Lovely

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act concerning furnishing transcripts of notes and fees.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Joan B. Lovely</i>	<i>Second Essex</i>	
<i>Peter J. Durant</i>	<i>Worcester and Hampshire</i>	<i>2/13/2025</i>
<i>Todd M. Smola</i>	<i>1st Hampden</i>	<i>2/25/2025</i>
<i>David T. Vieira</i>	<i>3rd Barnstable</i>	<i>2/25/2025</i>
<i>John F. Keenan</i>	<i>Norfolk and Plymouth</i>	<i>3/3/2025</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>3/4/2025</i>
<i>Sal N. DiDomenico</i>	<i>Middlesex and Suffolk</i>	<i>3/6/2025</i>
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>3/17/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>4/2/2025</i>
<i>Brendan P. Crighton</i>	<i>Third Essex</i>	<i>4/4/2025</i>
<i>Dylan A. Fernandes</i>	<i>Plymouth and Barnstable</i>	<i>4/7/2025</i>
<i>Jacob R. Oliveira</i>	<i>Hampden, Hampshire and Worcester</i>	<i>5/6/2025</i>

SENATE No. 1168

By Ms. Lovely, a petition (accompanied by bill, Senate, No. 1168) of Joan B. Lovely, Peter J. Durant, Todd M. Smola, David T. Vieira and other members of the General Court for legislation to set rates for transcripts of notes and fees taken at a trial or hearing by a transcriber. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 4835 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act concerning furnishing transcripts of notes and fees.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 221 of the General Laws, as appearing in the 2022 Official Edition, is hereby
2 amended by striking out section 88 and inserting in place thereof the following section:-

3 Section 88. Upon request of the presiding justice or any party, the transcriber shall
4 furnish a transcript of their notes or audio recording, or any part thereof, taken at a trial or
5 hearing, for which they shall be paid by the party requesting it at the rate of \$4.50 per page for
6 the original and \$1.50 per page for each copy ordered. Copies, if so requested by an indigent
7 person or counsel for an indigent person, shall be paid at \$.15 per page. In the event that a rush
8 transcript is ordered by the presiding justice or any party, the rate shall be \$6.75 per page for the
9 original and \$2.25 per page for each copy; and provided further, that copies, if so requested by an

10 indigent person or counsel for an indigent person, shall be paid at \$.23 per page. If a transcript is
11 ordered by the presiding justice or, in a criminal case, by the district attorney, payment therefor
12 shall be made at the same rate by the administrative office of the trial court upon a voucher
13 approved by the presiding justice and, in a criminal case, the charges for transcripts furnished to
14 a justice and to the district attorney shall be taxed like other expenses. If the presiding justice
15 orders that a statement given to the police be transcribed, all parties shall receive a copy and
16 payment therefor shall be made at the same rate by the administrative office of the trial court
17 upon a voucher approved by the presiding justice.

18 Beginning on the first day of July 2030, and on the first day of each fifth July thereafter,
19 the rates and fees set forth in section 88 shall be increased to reflect the cumulative annual
20 percentage change in the Consumer Price Index and published as the adjusted amounts as used in
21 this section. The (1) office of transcription services or (2) the presiding justice of the
22 administrative office of the trial court shall issue directives to implement the purposes of this
23 section.